

Court No. - 3

Case :- WRIT - C No. - 20794 of 2021

Petitioner :- Ramesh

Respondent :- M/D Dakshinanchal Vidyut Nigam Vitran Nigam
And Another

Counsel for Petitioner :- Badri Mani Tripathi

Counsel for Respondent :- Madan Mohan Chaurasisa

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Heard Shri Badri Mani Tripathi, learned counsel for the petitioner and Shri Madan Mohan Chaurasiya, learned counsel for the Distribution-Corporation.

The petitioner disputes the correctness of the demand being raised against him.

At present, according to the disclosure of the writ petition, vide bill dated 04.02.2021 (Annexure no. 3 to the writ petition), an amount of Rs. 2,13,143/- has been demanded from the petitioner being current dues Rs. 7546.39/- and arrears of Rs. 203110.73/-.

Learned counsel for the petitioner states that the petitioner had already paid the entire due amount on 05.03.2020, in proof thereof, he has also annexed the receipt of deposit of Rs. 39,000/- towards electricity dues.

Perusal of the same, clearly indicates that the amount that was paid by the petitioner on 05.03.2020 was for the bill that may have been raised prior to the date of that deposit. That amount was not paid under the bill dated 04.02.2021 as that bill was issued almost after one year from the payment of Rs. 39,000/-, made by the petitioner.

It is an admitted case of the petitioner that a temporary

disconnection took place on 13.03.2021 and not earlier. Therefore, the petitioner is assumed to have consumed electricity till then.

All other grievances of the petitioner may be examined by the statutory authority in accordance with the provisions of U.P. Electricity Supply Code, 2005.

At present, no ground is made out to entertain the challenge raised by the petitioner.

Writ petition lacks merit and is, accordingly, ***dismissed***.

No order as to costs.

Order Date :- 27.8.2021

Saurabh